

Carrelha v. MEB Loan Trust VIII

A multi-agent litigation operations system, and what the verified record says about the next seven days.

THE HEADLINE

The urgent deadline is not the one anyone was watching. Attention was on McCalla's motion (Doc 40, filed 9/11). But Shellpoint's motion (Doc 37) was filed a week earlier, on 9/4 — and its response deadline computes to **today, September 21**. Meanwhile the foreclosure notice at Doc 41 appears to negate the single stated basis on which the preliminary injunction was denied.

COURT
N.D. Ga., Gainesville Division

DISTRICT JUDGE
Richard W. Story

PREPARED
21 September 2026

CASE NO.
2:26-cv-00110-RWS-AWH

MAGISTRATE JUDGE
Anna W. Howard

STATUS
Record frozen; 4 documents missing

1 What changed once the record was actually read

The system's first phase is a record freeze: read the primary documents before arguing anything. Doing that on this matter overturned four working assumptions. Each one would have produced a defective filing.

ASSUMPTION	WHAT THE RECORD SHOWS	WHY IT MATTERS
Doc 40 is the urgent deadline	Doc 37 (Shellpoint) was filed 2026-09-04 — a week before Doc 40. Its response period computes to 2026-09-21 .	The earlier motion carries the earlier deadline. It is today. Status unknown.
Case is 1:26-cv-(Atlanta)	Docket reads 2:26-cv-00110-RWS-AWH — Gainesville Division.	Division appears in every caption and certificate. A wrong division is a defect on every page filed.
Three defendants	Five: MEB, NewRez/Shellpoint, SLS d/b/a Achieve, MERS, McCalla.	Certificates of service and element matrices must cover all five, separately.
Doc 36 is the amended complaint	The file labeled Doc 36 is dated 2026-08-21 and is <i>17 pages of phone screenshots</i> . The operative pleading's docket number is unestablished .	Briefing a Rule 12 opposition against the wrong pleading makes the whole brief worthless.

THE RULE THIS ENFORCES

Never draft an opposition to a motion the system has not read. Where the document is absent, the only permitted output is **BLOCKED BY MISSING OPERATIVE RECORD** , naming the document. Four of this case's five live workstreams are currently in that state — which is the honest answer, not a failure.

2 The deadline board

Every date below was computed from the trigger event and re-derived independently by the validation suite. PACER's calculated dates are treated as data, not authority; where they disagree with the computation, the system operates to the earliest candidate.

DATE	OUT	ITEM	STATE
Sep 21	0	Response to Doc 37 (Shellpoint MTD) — filed or extended?	VERIFY NOW
Sep 25	4	Response to Doc 40 (McCalla MTD) — earliest candidate	BLOCKED
Sep 28	7	Rule 72(a) objection to Doc 39 (discovery stay)	BLOCKED
Sep 28	7	Doc 40 response — mail-service candidate (cushion)	DO NOT RELY
Sep 29	8	Doc 40 response — PACER's figure (cushion)	DO NOT RELY
Nov 3	43	First Tuesday — non-compliant sale date if noticed	CHECK DOC 41
Dec 1	71	First Tuesday — earliest sale compliant with Doc 34	COMPLIANT

Doc 40 produces three different dates from three sources

trigger	Doc 40 filed 2026-09-11 (Friday)
rule	N.D. Ga. LR 7.1(B) – 14 days after service
base	2026-09-11 + 14 = 2026-09-25 (Friday)
Rule 6(d)	+ 3 days by mail = 2026-09-28 (Monday)
PACER	2026-09-29 (Tuesday)
CONTROLLING	2026-09-25 – operate to the earliest candidate

Nothing in the rule produces PACER's September 29 on these facts. Treating it as the deadline spends four days that may not exist.

THE SINGLE ASSUMPTION THAT MOVES EVERY DATE

All three-day additions above assume service by mail under Rule 5(b)(2)(C). **If Plaintiffs are registered CM/ECF filers, every +3 disappears and every deadline moves three days earlier.** This is the highest-priority open item on the sheet and it is answerable in one look at the docket.

3 The foreclosure question, which is bigger than the stay

Doc 34 did two things that control everything happening now. Both were verified against the order's full text.

The court imposed a 60-day condition

"should Defendants elect to proceed with foreclosure, Defendants shall provide Plaintiffs (and the Court) with a minimum of 60 days advance notice." — Doc 34 at 26

Notice is owed to **Plaintiffs and the Court**. Where the two dates differ, the later one starts the clock. Doc 41 was filed with the Court on 2026-09-15. Georgia nonjudicial sales occur on the first Tuesday of the month:

60 days from 2026-09-15 = 2026-11-14 (Saturday)		
first Tuesday	days out	compliant with Doc 34?
2026-11-03	49	NO – eleven days short
2026-12-01	77	yes
EARLIEST COMPLIANT SALE: 2026-12-01		

RUN THIS CHECK THE MOMENT DOC 41 IS IN HAND

If Doc 41 notices a sale for **November 3**, that sale violates the court's own order by eleven days — and the correct filing is a **motion to enforce Doc 34**. That is a far stronger and cheaper paper than a fresh injunction motion: it asks the court to enforce what it already ordered, rather than to revisit what it already denied. If Doc 41 notices December 1 or later, the condition is met and the question reverts to renewed Rule 65 relief.

The injunction was denied as moot — and the premise may have just evaporated

"With no foreclosure sale currently scheduled, there is no threat of imminent, irreparable harm." — Doc 34 at 25

That is a mootness ruling, **not a merits ruling**. The court's own footnote 12 distinguished *Crawford* precisely because these Plaintiffs do plead a wrongful-foreclosure claim. A docketed notice scheduling a sale negates the sole stated basis for the denial. This is the strongest development in the case, and as of today it is unexploited.

Why this reframes the discovery stay

Judge Howard granted the stay on 2026-09-09. The sale notice is dated 2026-09-15 — six days later. The best available argument is therefore probably *not* that the stay was wrongly entered. Under Rule 72(a) that argument faces "clearly erroneous or contrary to law," a standard that ordinary case-management stays survive. The stronger argument is **changed circumstances**: the stay was entered on a record where nothing was imminent, and the posture changed within the week.

VEHICLE	WHEN IT IS THE RIGHT ONE
Do not file	Ordinary case management, no concrete present prejudice. The default.
Rule 72(a) objection	Timely, and a specific portion is arguably clearly erroneous or contrary to law.
Motion to modify	A material post-order development changes the equities. <i>Most likely fit here.</i>
Narrow targeted relief	Limited expedited discovery or preservation tied to a specific imminent event.

TWO STANDARDS THAT MUST NEVER BE BLENDED

Doc 34 referred the motions to dismiss to the magistrate judge for **report and recommendation** under Standing Order 18-01. Those draw **Rule 72(b) de novo** objections. The discovery stay is a nondispositive order drawing **Rule 72(a)** deferential review. Briefing a deferential question as though it were de novo is the error that gets an objection denied without reaching the merits.

4 The system that produced this

Twenty-four persistent specialist subagents, a reusable case template, mandatory gates, and one master prompt. It is a litigation operating system, not a set of prompts — it persists from matter to matter.

COMMAND & RECORD · 4 litigation-chief · record-custodian · docket-deadline-clerk · local-rules-procedure	PLEADING & MOTION · 4 rule12-pleading-specialist · motion-argument-mapper · incorporation-judicial-notice · claim-element-matrix
SUBJECT-MATTER LAW · 5 fdcpa · respa-regx · fcra · georgia-foreclosure · contract-equity-remedies	EVIDENCE & MONEY · 3 accounting-forensics · declaration-evidence-auditor · citation-authority-checker
SPECIAL PROCEEDINGS · 3 discovery-stay-rule72 · emergency-injunction · appellate-preservation	ADVERSARIAL & QC · 5 defense-red-team · magistrate-howard-bench · judge-story-review · filing-format-service-qc · final-editor

Each agent runs in its own context, so the FDCPA specialist spends its window on debt-collector doctrine while the accounting agent independently reconstructs the ledger. Concurrency is capped at 16 rather than the platform's 20: the reserve is spent on synthesis, because coordination cost rises faster than output as agent count grows.

One writer per filing

Specialists produce *reports*. Only `final-editor` writes to `07_final/`. This is the rule that prevents twenty agents producing twenty conflicting drafts of the same brief — the failure mode that makes large agent teams useless in practice.

Seven gates, four release states

Record → procedure → merits → evidence → authority → adversarial → document. Nothing reaches the final folder without a completed gate sheet, and every deliverable ends in exactly one state:

STATE	MEANING
FILE	All seven gates passed. Ready for the user's review and signature.
FILE AFTER CORRECTION	Substantively sound; the listed corrections are mechanical and enumerated.
DO NOT FILE	A gate failed on the merits. Reason stated, alternative proposed.
BLOCKED	The operative document is missing. Named. No draft produced.

The authority gate has one absolute rule: **any citation that cannot be verified against a retrievable source is deleted** — not softened, not hedged with a *see*, not left in with a note. That gate exists to prevent the single most damaging failure mode in AI-assisted litigation.

5 How this goes wrong

A system that has not been tested against its own failure modes is a liability. These are the ways this one breaks, and what was built to catch each.

FAILURE	HOW IT HAPPENS	CONTROL
Fabricated authority	A model writes a plausible citation and no one retrieves the case.	Authority gate. Unverifiable cites are deleted, and the deletion is logged so the drafter knows.
Briefing a motion nobody read	Docket text is mistaken for the document; an earlier version substitutes for the current one.	Hard precondition on <code>motion-argument-mapper</code> : absent document → <code>BLOCKED</code> , no guessing.
Wrong operative pleading	The newest document on hand is assumed to be operative.	Custodian may not promote to <code>OPERATIVE</code> by recency. A superseded pleading with no successor on file yields <code>MISSING</code> . <i>This fired on this case.</i>
Confidently wrong deadline	PACER's figure is copied; a Saturday is assumed to be a weekday; Rule 6(d) is applied when it should not be.	Full computation chain shown; <code>date</code> verifies every step; earliest candidate governs; the validation suite re-derives all of it.
Opposing a granted motion	A calendar entry says "respond to motion to stay" and nobody checks whether it was ruled on.	<code>discovery-stay-rule72</code> determines the vehicle before the argument.
Blended review standards	Rule 72(a) and 72(b) treated as one, so a deferential question is briefed de novo.	The referral posture is recorded in <code>CASE.md</code> and the standards are separated in the master prompt.
Group pleading	Servicer conduct and foreclosure-counsel conduct argued as "Defendants."	The element matrix forbids it; <code>defense-red-team</code> hunts every instance.
Twenty conflicting drafts	Parallel agents all edit the same brief.	One writer per filing, recorded in <code>OWNERSHIP.md</code> . Only <code>final-editor</code> writes to final.
Stale rules	A cached local-rules PDF is treated as current.	<code>local-rules-procedure</code> re-verifies against the court's site, with the date checked recorded.
Record sprawl	A different matter's documents (here, the Truist file) leak into this case's record.	Custodian scopes to one source root; duplicate mirrors are flagged, not merged.
PII leakage	Case PDFs with a loan number and home address get committed to a hosted repository.	Index-by-reference: the repo stores the index, never the documents. Enforced by a validator check.
Agreeable review	One agent grades its own brief and likes it.	Four independent adversarial contexts: opposing counsel, magistrate, district judge, appellate.

What the validation suite actually checks

Twenty-seven assertions, run by `./validate.sh`: agent frontmatter integrity and name/filename agreement, no duplicate agent names, valid settings, every cross-referenced agent resolves, vocabulary consistency between the rules and the gates, case-folder completeness, the no-documents-committed privacy rule, four behavioral tests of the bootstrap script, and — most usefully — **independent re-derivation of every deadline and the entire 60-day foreclosure computation**. On its first run it found three real defects. All pass now.

WHAT THIS SYSTEM CANNOT REACH

Not the user's computer, not iCloud Drive, not PACER directly. It reads Dropbox, Google Drive, Gmail, and CourtListener. RECAP carries this docket's shell but **none of its filed documents**. Anything living only on the Mac or in iCloud is invisible; the supported bridge is to put it in Dropbox and run intake.

6 What unblocks the work

Four documents and one docket sheet. Each one releases a specific workstream; none of them can be worked around.

NEEDED	RELEASES
The current docket sheet	Whether a Doc 37 response was filed; Plaintiffs' CM/ECF status (moves every deadline by three days); counsel of record for certificates; the operative pleading's docket number.
Doc 40 — McCalla MTD, 9/11	The McCalla opposition and the Dkt. 5 → Doc 40 delta. Due in four days.
The operative amended complaint	Every element matrix. Both oppositions. The deepest blocker in the case.
Doc 41 — sale notice, 9/15	The 60-day compliance check, and the choice between a motion to enforce and a renewed Rule 65 motion.
Doc 39 — stay order, 9/9	Rule 72(a) timing and the vehicle decision.
Dkt. 5 — McCalla's first MTD	The delta baseline. An argument McCalla <i>abandons</i> between Dkt. 5 and Doc 40 is evidence the amendment worked.

Prepared by the litigation operations system in `pro_se_litigation_ops/`. All findings marked as verified were taken from the full text of Doc 34 (2026-07-20). Documents marked missing were not available to the system and no substitute was used. This is work product prepared for the review and signature of a self-represented party. It is not legal advice, and no filing decision has been made.